**INDEPENDENT CONTRACTOR SERVICES AGREEMENT**

This Independent Contractor Services Agreement ("Agreement") is entered into and becomes effective on the date the Contractor executes it (the "Effective Date").

**Atlas Capture LLC**, a Wyoming limited liability company, with its principal place of business at 30 N Gould St Ste R, Sheridan, WY 82801, USA, email: team@atlascapture.io ("Client"),

and

**[Contractor Legal Name]**, a [jurisdiction and entity type, e.g., individual / corporation / sole proprietor] and with its address at [Contractor Address] ("Contractor").

Maxi Osei Kwame GS-0026-0539 (11 oseimaxi96 6@gmail.co

Client and Contractor are sometimes referred to individually as a "Party" and collectively as the "Parties."

> **Note:** This template is for general informational purposes only and should be reviewed and tailored by a qualified attorney before use.

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## 1. OVERVIEW AND DEFINITIONS

**1.1 Purpose.** Client wishes to engage Contractor, from time to time, to provide certain professional services. Contractor represents that it has the experience, qualifications, and capacity to provide such services on an independent contractor basis.

**1.2 Definitions.** For purposes of this Agreement:

- **"Services"** means the services, tasks, and responsibilities that Client requests and Contractor performs from time to time under this Agreement, whether described in:
    - written or verbal task assignments, project briefs, or instructions issued by Client ("**Work Assignments**"); and/or
    - any optional Statement of Work as defined below.
- **"Statement of Work" or "SOW"** means an optional document, substantially in the form of Schedule 1 (if used), that is signed (or otherwise agreed in writing) by both Parties, references this Agreement, and may set out special terms such as different rates, specific deliverables, or timelines. Use of an SOW is not required for Client to request, or Contractor to perform, Services under this Agreement.

- **“Standard Hourly Rate”** means the default hourly rate of **USD $2.50 (two dollars and fifty cents) per hour** for time spent performing Services under this Agreement, unless the Parties agree in writing to a different rate for some or all Services as described in Section 3.1.

- **“Work Product”** means any and all deliverables, materials, results, outputs, inventions, software, code, documentation, data, designs, media, or other work created, developed, produced, collected, or delivered by or on behalf of Contractor in connection with the Services.

- **“Confidential Information”** and **“Personal Data”** have the meanings given to them in Sections 6 and 7, respectively.

**1.3 Order of Precedence.**
If there is a conflict between the terms of this Agreement and any written document (including any SOW or other written agreement) that expressly states it is modifying this Agreement, that written document will govern **solely with respect to the Services and time period covered by it**, and only to the extent of the express modification.

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## 2. ENGAGEMENT AND SCOPE OF WORK

**2.1 Engagement.** Client hereby engages Contractor, and Contractor accepts such engagement, to perform the Services described in Work Assignments issued by Client from time to time and, if applicable, any SOWs agreed by the Parties.

**2.2 Work Assignments.**
From time to time, Client may request Services through Work Assignments, which may be communicated via email, project management tools, messaging platforms, or other written instructions. Each Work Assignment may specify, as applicable:

- a description and scope of the Services;

- deliverables and milestones;

- expected timelines and schedules; and

- any project-specific instructions or requirements.

The Parties may, but are not required to, formalize certain projects or different rates in a separate SOW.

**2.3 Control of Work.** Subject to the requirements and deadlines in the applicable Work Assignments or SOW (if any):

- Contractor will determine the manner, method, and means of performing the Services;
- Contractor is solely responsible for supervising and directing its own work and that of its personnel; and
- Contractor will perform the Services in a professional, diligent, and timely manner, consistent with industry standards.

**2.4 Tools and Work Location.** Unless expressly stated otherwise in writing:

- Contractor will supply, at its sole cost, all equipment, software, tools, and facilities needed to perform the Services; and
- Contractor will perform the Services from Contractor's own premises or other locations selected by Contractor, not Client's premises.

**2.5 Subcontractors and Delegation.** Contractor may, at its own cost, engage subcontractors or substitute personnel to perform some or all of the Services, provided that:

- Contractor remains fully responsible for all acts and omissions of such persons;
- such persons are bound by written obligations that are at least as protective of Client as this Agreement (including confidentiality, IP, data protection, and compliance); and
- Client may reasonably object to any subcontractor or substitute for legitimate security, performance, or legal reasons.

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## 3. COMPENSATION, INVOICING AND EXPENSES

**3.1 Fees.**

(a) **Standard Hourly Rate.**
Unless otherwise agreed in writing under Section 3.1(b), Client will pay Contractor **USD $2.50 per hour** for time actually spent performing the Services ("Standard Hourly Rate"). No minimum number of hours is guaranteed.

(b) **Modified Rates (Including via SOW).**
The Parties may agree in writing (including by signed SOW, email exchange, or other written instrument that clearly identifies the new rate) to:

- a different hourly rate;
- per-task, per-deliverable, or performance-based fees; or
- other fee structures,

for some or all Services, for specific projects, roles, or time periods. Any such written agreement may **replace or supplement the Standard Hourly Rate** for the Services it covers.

(c) **Changes to Standard Hourly Rate (Prospective Only).**
Client may propose changes to the Standard Hourly Rate by giving Contractor at least **[7] days' prior written notice** (email suffices). Any change will apply only to Services performed after the effective date in the notice. If Contractor does not agree, Contractor may stop performing Services and/or terminate this Agreement in accordance with Section 10.

**3.2 Invoicing.** Unless the Parties agree otherwise in writing:

- Contractor will invoice in accordance with the billing schedule agreed by the Parties (e.g., weekly, semi-monthly, or monthly);
- invoices will itemize the dates and hours worked, a brief description of the Services performed, and any pre-approved expenses; and
- Client may request reasonable supporting documentation, including time records from Client's designated time-tracking tools.

**3.3 Payment Terms.**

- Client will pay undisputed amounts within **[14] days** after receipt of a proper invoice (e.g., 7 or 15 days, as agreed and filled in here).
- If Client disputes any portion of an invoice, Client will:
    - notify Contractor in writing, specifying the disputed portion;
    - pay any undisputed portion when due; and
    - cooperate in good faith to resolve the dispute.

- Client may withhold payment of only the disputed portion while the dispute is pending.

**3.4 Expenses.** Contractor is responsible for its own business expenses. Client will reimburse Contractor only for expenses that:

- are expressly authorized in writing in advance by Client;
- are necessary and directly related to the Services; and
- are properly documented with receipts or other evidence.

**3.5 Taxes and Withholdings.** Fees are exclusive of all taxes unless the Parties agree otherwise in writing. Contractor acknowledges that:

- Client will not withhold or remit any income, employment, social security, social insurance, payroll, or similar taxes on Contractor's behalf;
- Contractor is solely responsible for determining, reporting, and paying all taxes, social contributions, and other governmental charges arising from compensation received under this Agreement; and
- Contractor will indemnify Client against any assessments, penalties, or interest imposed by any authority due to Contractor's failure to meet such obligations, except to the extent caused by Client's intentional misconduct.

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## 4. STATUS OF CONTRACTOR, BENEFITS AND TAX RESPONSIBILITY

**4.1 Independent Contractor Relationship.** The Parties expressly intend and agree that:

- Contractor is an independent contractor, not an employee, worker, partner, agent, franchisee, or representative of Client; and
- nothing in this Agreement creates an employment relationship or entitles Contractor (or its personnel) to any employment protections or worker status with Client.

**4.2 No Employment Benefits.** To the maximum extent permitted by law, Contractor:

- acknowledges that it is not eligible for and waives any claim to benefits provided by Client to employees, including but not limited to:

    - paid vacation, holidays, or statutory holiday pay;
    - sick leave or paid time off;
    - retirement or pension benefits;
    - health, dental, vision, disability, or life insurance;
    - bonuses, stock options, equity awards, or profit-sharing; and
- acknowledges that any compensation is limited to the Fees expressly set out in this Agreement or any written rate agreement/SOW under Section 3.1.

**4.3 No Authority to Bind.** Contractor has no authority to:

- enter into contracts on behalf of Client;
- make representations or warranties in Client's name; or
- incur any obligations or liabilities for or on behalf of Client.

Contractor will not hold itself out as having such authority.

**4.4 Statutory Obligations and Compliance.** Contractor is solely responsible for:

- its own registrations, licences, and filings required to operate its business;
- compliance with all applicable labor, employment, social security, tax, and health and safety laws with respect to Contractor and its personnel; and
- ensuring that its personnel do not claim or assert employment or worker status with Client.

**4.5 Misclassification Indemnity.** If any authority, court, or tribunal determines or alleges that Contractor (or its personnel) should be treated as an employee or worker of Client, Contractor will indemnify and hold Client harmless from all resulting:

- taxes, social contributions, premiums, and similar obligations;
- back pay, statutory benefits, severance, vacation pay, penalties, and interest; and

- reasonable legal fees and costs incurred in responding to or defending such claim,

except to the extent directly caused by Client's intentional misconduct.

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## 5. WORK PRODUCT, OWNERSHIP AND INTELLECTUAL PROPERTY

**5.1 Work Product Definition.** "Work Product" includes, without limitation:

- software, code, scripts, models, algorithms, annotations, datasets, data pipelines, user interfaces;
- documentation, diagrams, specifications, reports, and presentations;
- visual, audio, or audiovisual content; and
- any other materials created, developed, authored, collected, or delivered by Contractor in connection with the Services, whether alone or with others.

**5.2 Ownership and Assignment.** To the fullest extent permitted by law:

- all Work Product is and will be the sole and exclusive property of Client from the moment of creation; and
- Contractor hereby assigns and transfers to Client all rights, title, and interest worldwide in and to the Work Product, including all copyrights, patents, trade secrets, mask works, trademarks, and other intellectual property and proprietary rights.

**5.3 Additional Assurances; Power of Attorney.** Contractor will, at Client's request and expense:

- execute any documents and take any steps reasonably necessary to assist Client in securing, maintaining, and enforcing its rights in the Work Product (including patent and copyright applications worldwide); and
- if Contractor fails or is unable to do so within a reasonable time, Contractor appoints any duly authorized officer of Client as Contractor's attorney-in-fact, solely to execute documents on Contractor's behalf as necessary to perfect the assignment of Work Product.

**5.4 Moral Rights Waiver.** To the maximum extent permitted by law, Contractor:

- irrevocably waives any and all “moral rights” or similar rights that Contractor may have in the Work Product (e.g., attribution, integrity, and the right to prevent modification); and

- agrees not to assert such rights against Client or its licensees.

**5.5 Background Technology and Licence.** “Background Technology” means any tools, software, methods, know-how, or intellectual property owned or controlled by Contractor that:

- existed prior to the Effective Date; or

- were developed independently of the Services and not using Client’s Confidential Information.

To the extent Work Product incorporates or depends on Background Technology, Contractor grants to Client a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free licence to use, reproduce, modify, distribute, and otherwise exploit such Background Technology as necessary to use and exploit the Work Product and any Client products or services in which it is integrated.

**5.6 No Additional Compensation.** Except where prohibited by law, Contractor acknowledges that the Fees paid under this Agreement and any modified rate agreements/SOWs are the entire compensation for the Services and the assignment/licence of Work Product and related rights. Contractor is not entitled to any separate royalty or participation in revenue derived from the Work Product.

**5.7 Client’s IP Discretion.** Client has sole discretion to:

- patent or not patent any Work Product;

- maintain Work Product as trade secrets;

- abandon or dedicate Work Product to the public; and

- use, modify, or not use Work Product,

without any additional consent or payment to Contractor.

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## 6. CONFIDENTIAL INFORMATION AND INFORMATION SECURITY

[**Section 6 remains substantially as in your original:** definition of Confidential Information, non-use/non-disclosure, handling & storage, legal process, third-party confidential information, return/destruction, and survival. Wording can stay as-is from your original text.]

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## 7. PRIVACY, DATA PROTECTION AND MONITORING

[Same structure and content as your original Section 7: definition of Personal Data, compliance, security measures, data incidents, data subject requests, and monitoring of Client resources.]

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## 8. WARRANTIES, COMPLIANCE AND ANTI-CORRUPTION

[Same as original Section 8: no conflicting obligations, performance warranty, non-infringement, compliance/anti-bribery/anti-tax evasion, and compliance with Client policies.]

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## 9. COMPETITIVE ACTIVITIES AND NON-SOLICITATION

[Same as original Section 9: competitive activities during term and mutual non-solicitation.]

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## 10. DURATION, TERMINATION AND CONSEQUENCES

**10.1 Term of Agreement.** This Agreement begins on the Effective Date and continues until terminated as provided in this Section 10.

**10.2 Optional Term of SOWs.** If the Parties choose to use any SOW, each SOW will specify its own start date and, if applicable, end date. The termination or expiration of any SOW will not, by itself, terminate this Agreement.

**10.3 Termination for Convenience.**

- **By Client.** Client may terminate this Agreement and/or any Work Assignment or SOW, in whole or in part, for convenience upon at least fourteen (14) days' prior written notice to Contractor.

- **By Contractor.** Contractor may terminate this Agreement and/or any Work Assignment or SOW for convenience upon at least thirty (30) days' prior written notice to Client, unless the Parties agree in writing to a different notice period.

**10.4 Termination for Cause.** Either Party may terminate this Agreement, any Work Assignment, and/or any SOW immediately upon written notice if the other Party:

- materially breaches this Agreement or any applicable written terms and fails to cure such breach within seven (7) days after written notice;
- becomes insolvent, declares bankruptcy, or ceases to operate in the ordinary course; or
- engages in fraud, wilful misconduct, serious data protection breaches, or illegal acts that materially harm or reasonably threaten to materially harm the other Party.

Client may terminate immediately if Contractor or its personnel engage in conduct that, in Client's reasonable judgment, creates an unacceptable security, legal, or reputational risk.

**10.5 Obligations Upon Termination.** Upon termination or expiration of this Agreement, any Work Assignment, or any SOW:

- Contractor will stop performing the affected Services;
- Contractor will promptly deliver all Work Product (including work-in-progress) and Client Confidential Information to Client as specified in Sections 5 and 6;
- Client will pay Contractor any undisputed Fees for Services properly performed and approved, and any pre-approved expenses, up to the effective date of termination, in accordance with this Agreement and any applicable written terms; and
- any licences, access rights, or permissions granted to Contractor by Client will automatically cease.

**10.6 Survival.** Any provision that by its nature should survive termination will survive, including without limitation Sections 3.5, 4–9, 10.5–10.6, 11, 12, and 13.

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## 11. RISK ALLOCATION, INDEMNITY AND LIABILITY LIMITS

[Same structure as original Section 11: Contractor indemnity, exclusion of certain damages, cap on Client's liability only, no cap for certain Contractor obligations, and non-excludable liability.]

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## 12. GENERAL TERMS

[Same as original Section 12: assignment, no waiver, severability, notices (emails for Client and Contractor), relationship of the Parties, entire agreement, amendments, governing law/forum (Wyoming), third-party beneficiaries, electronic signatures.]

**12.1 One-Sided Execution; Sufficiency of Contractor Signature**

The Parties agree that Client is not required to countersign this Agreement for it to become effective. Contractor's execution of this Agreement via DocuSign or any other electronic signature system constitutes full acceptance and creates a legally binding contract. Client's signature block is provided for reference only and does not affect the validity or enforceability of this Agreement. The Effective Date shall be the date Contractor executes this Agreement.

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## 13. FORCE MAJEURE

[Same as original Section 13: definition of Force Majeure Events, notice & mitigation, extended force majeure and termination rights.]

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**CONTRACTOR**

Name: Maxi Osei Kwame

Date: 2025-12-16 08:07 PM

Signature: Maxi Osei K

# Signing Certificate

| Signer Events | Signature | Details |
| --- | --- | --- |
| **Maxi Osei Kwame Asante**<br>oseimaxi966@gmail.com<br>Signer<br>Authentication Level:<br>Email |  <br>Signature ID:<br>CMJ9HQ31K1OXTAD1V2ENC0NL3<br>IP Address: 102.176.94.30<br>Device: Windows - Chrome 143.0.0.0 | Sent: Unknown<br>Viewed: 2025-12-17 04:07:22 AM (UTC)<br>Signed: 2025-12-17 04:07:20 AM (UTC)<br>Reason: I am a signer of this document |

Signing certificate provided by: Documenso